

24AVCV00889 24AVCV00889

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-10

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Source SHA-256: 4f9e04928b352bfbb934f274cce6afc4987d6db70a3abd747467c2b70233d266

Case Number: 24AVCV00889 Hearing Date: August 10, 2026 Dept: A14

24AVCV00889

Nunez vs FCA US, LLC

The following are the Court's rulings on the parties' Motions in Limine ("MILs"). Because the following rulings on the motions in limine are based upon evidence known at the present time, these rulings are only tentative and may be subject to change as the evidence unfolds. (See Scott v. C.R. Bard, Inc. (2014) 231 Cal.App.4th 763.)

The Court further notes that the MILs filed by both sides were untimely. The Court exercises its discretion to consider the MILs. Any MIL that is denied is also denied in the alternative as untimely.

Plaintiff's MILs

PLAINTIFF'S MOTION IN LIMINE NO. 1

TO EXCLUDE SETTLEMENT DISCUSSIONS

– GRANTED. Such matters are not relevant to any claim or defense and are potentially prejudicial and, thus, should be excluded under Evidence Code § 352.

PLAINTIFF'S

MOTION IN LIMINE NO. 2 TO EXCLUDE EVIDENCE, TESTIMONY OR ARGUMENT THAT DEFENDANT PROPOSED ARBITRATION AS A RESOLUTION TO THIS MATTER –

GRANTED. Such matters are not relevant to any claim or defense and are potentially prejudicial and, thus, should be

excluded under Evidence Code § 352. Because Plaintiff does not seek relief under Civil Code § 1794(e) or § 1793.22, evidence of the existence or Plaintiff's use of Defendant's optional arbitration program is irrelevant to the claims raised in this case. The Court rejects Defendant's argument that its arbitration program is relevant to the question of whether its failure to repurchase or replace the vehicle was willful. The existence of this program prior to Defendant's failure has no probative value for the question of willfulness. That said, it would be unfair for Plaintiff to offer evidence that Defendant failed to maintain any arbitration program or did not refer Plaintiff to such a program, without allowing Defendant to offer responsive evidence. The Court's ruling means, therefore, that neither side may refer to any arbitration program in arguing Defendant's willfulness or lack thereof.

PLAINTIFF'S

MOTION IN LIMINE NO. 3 TO EXCLUDE EVIDENCE OR ARGUMENT REFERRING OR RELATING TO ATTORNEY'S FEES AND LITIGATION COSTS –

GRANTED.

Such matters are

not relevant to any claim or defense and are potentially prejudicial and, thus, should be excluded under Evidence Code § 352.

PLAINTIFF'S

MOTION IN LIMINE NO. 4 TO EXCLUDE EVIDENCE, TESTIMONY OR ARGUMENT REFERRING OR RELATING TO PLAINTIFF'S APPLICATION FOR FINANCING AND FINANCIAL CONDITION – GRANTED in part and DENIED in part.

Evidence regarding Plaintiffs' general financial condition bears no probative value to adjudicating the claims. However, Plaintiffs' financing application could offer pertinent evidence to the extent it speaks to the costs associated with the purchase of the vehicle, which are relevant to any damages that Plaintiff may claim to have incurred. While the Court does not rule now that such specific evidence is admissible for the purposes of challenging Plaintiffs' damages claims, the Court does not rule out the possibility of the probative value of such evidence. Accordingly, the Court denies without prejudice the MIL with respect to the finance application or terms, but will weigh the probative value against the prejudicial impact of any such evidence as it arises at trial.

PLAINTIFF'S

MOTION IN LIMINE NO. 5 TO EXCLUDE EVIDENCE OR ARGUMENT REFERRING OR RELATING TO

ATTORNEY ADVERTISING –

GRANTED.

Such matters are

not relevant to any claim or defense and are potentially prejudicial and, thus, should be excluded under Evidence Code § 352. All counsel and parties will be introduced to prospective jurors who will be asked by the Court if they have ever heard of or know any of the parties, lawyers or law firms and, if so, how they came to hear of or know any of them. The Court may inquire into any prior impressions these potential jurors have of any of the parties or lawyers but this questioning may be conducted out of the earshot of other jurors, because of the potentially prejudicial impact of negative views of individual jurors.

PLAINTIFF'S

MOTION IN LIMINE NO. 6 TO PRECLUDE EVIDENCE AND ARGUMENT THAT TIMELY REVOCATION OF ACCEPTANCE WAS REQUIRED –

GRANTED. Such matters are not relevant to

any claim or defense. Through this motion, Plaintiff raises the concern that Defendant will argue Plaintiff should be denied some or all relief on his Song-Beverly Consumer Warranty Act claims based on the contention that Plaintiff failed to give timely notice to the seller of revocation of acceptance of the vehicle. Although the California Uniform Commercial Code generally requires that a buyer give notice of revocation of acceptance of goods within a reasonable time after their delivery (Comm. Code §§ 2602(1); 2607(3)(a)), the Song-Beverly Consumer Warranty Act, which contains more stringent consumer protections, does not require rejection or revocation of acceptance of a vehicle within a reasonable time or any time at all. (Civ. Code § 1793.2(d); *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1301, 1310; *Krotin v. Porsche Cars North America, Inc.* (1995) 38 Cal.App.4th 294, 300.) As the Court of Appeal explained in *Mexia*, the Commercial Code's requirements that revocation be given within a reasonable time after sale "do not apply to any action brought under the Song-Beverly Act. . . . If the Legislature intended the duration provision to impose a deadline for consumers to give notice of defects under the Song-Beverly Act, it could easily have done so. It did not." (*Ibid.*, at pp. 1307, 1310.)

PLAINTIFF'S

MOTION IN LIMINE NO. 7 FOR AN ORDER ESTABLISHING THAT STATEMENTS MADE BY DEFENDANT'S DEALERSHIP PERSONNEL (WARRANTY AGENTS) ARE NONHEARSAY AND

ADMISSIBLE

DENIED without prejudice. The Court cannot determine in the abstract whether various unidentified statements by dealership personnel (1) are or are not hearsay, and (2) are party admissions against Defendant under an actual or ostensible agency theory. As a predicate to admission of such statements as a party admission, Plaintiffs must first establish the dealership personnel are actual or ostensible agents of Defendant.

PLAINTIFF'S MOTION IN LIMINE NO. 8 TO EXCLUDE EVIDENCE
OR ARGUMENT REGARDING DEFENDANT'S §998 STATUTORY OFFER TO COMPROMISE –

GRANTED.

(See Code Civ. Proc. § 998(b)(2).)

PLAINTIFF'S MOTION IN LIMINE NO. 9 TO EXCLUDE
EVIDENCE, TESTIMONY OR ARGUMENT RELATING TO A MONETARY OFFSET BASED ON
PLAINTIFF'S RESALE OF THE SUBJECT VEHICLE.

GRANTED, as
unopposed. See also *Niedermeier v. FCA US LLC* (2024) 15 Cal.5th
792, 801.

DEFENDANT'S
MILs.

DEFENDANT'S
MIL NO. 1 TO EXCLUDE EVIDENCE OF UNRECOVERABLE DAMAGES.

DENIED, without prejudice.

CACI 3242 and 3243 will be given as
instructions. Pursuant to the Song-Beverly Act, Plaintiff may seek damages
incurred by the Plaintiff incidental to her ownership of the vehicle based upon
her cost for the care and custody of the vehicle. If Plaintiff seeks to
introduce evidence of damages "non-recoverable" under law, specific objection
can be made at that time.

DEFENDANT'S MIL NO. 2 TO EXCLUDE EVIDENCE OF

OTHER LAWSUITS OR COMPLAINTS MADE BY OTHER OWNERS OF SIMILAR VEHICLES AND
ALLEGED DEFECTS IN OTHER VEHICLES.

DENIED in part, without prejudice, and
GRANTED in part. Defendant seeks a broad exclusion order that
would bar admission of several categories of documents and evidence without
submitting or even identifying any documents for the Court's consideration. No
meaningful order can be issued based on such a motion. *Kelly v. New West*
Fed. Sav. (1996) 49 Cal. App. 4th 659, 670. Moreover, as Plaintiffs'
opposition demonstrates, courts have properly admitted and considered documents
falling within the categories

Defendant targets for exclusion categories of evidence/testimony that
could be relevant and admissible depending on the particular evidence and
circumstances. (E.g., *Donlen v. Ford*, *supra*, at p. 153 [manufacturer's
special service message as evidence of its knowledge of transmission problem in
the truck model bought by plaintiff]; *Jensen v. BMW of N. America, Inc.*
(1995) 35 Cal. App. 4th 112, 135 [manufacturer's technical bulletin alerted
dealerships to brake problem]; *Santana v. FCA*, *supra*, at pp.
345-347 [internal emails about manufacturer's awareness of the problem is
probative of willfulness sufficient to support civil penalty].) While there may
be hearsay problems with some evidence offered, it may have a non-hearsay
purpose that would allow it to be offered to prove notice, knowledge, or
intentional refusal to repair. While there may be undue prejudice that might
arise from admission of a particular document, that prejudice may be outweighed
by the highly relevant nature of the document's contents. The Court cannot
evaluate these evidentiary issues without reviewing the proffered evidence and
hearing arguments about whether it should be admitted. Accordingly, the Court
denies the motion for failure to identify any evidence to be excluded.

To the extent Defendant seeks to exclude evidence of other lawsuits,
the motion is GRANTED, subject to renewal depending on the evidence and the
proffered purpose.

DEFENDANT'S MIL NO. 3 TO EXCLUDE EVIDENCE OF
UNREPORTED COMPLAINTS, OR COMPLAINTS PRESENTED ONLY ONCE FOR REPAIR.

DENIED, without prejudice. To
the extent the order sought by Defendant seeks to bar admission of several
categories of documents and evidence without submitting or identifying any such

particular evidence for the Court's consideration, no meaningful order can be issued based on such a motion. *Kelly v. New West Fed. Sav.* (1996) 49 Cal. App. 4th 659, 670

Furthermore, the Court finds first that there could be no categorical exclusion of such evidence under *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, on which Defendant relies, for Plaintiff's claim under Civil Code §1793.2(b), because liability under that provision is not dictated by the number of repair attempts but by the failure to repair a vehicle within 30 days of its presentation for repair. Because the parties do not highlight precisely what evidence would be offered to support this claim and, thus, could not be excluded based on Defendant's argument, the Court cannot make a wholesale exclusion order as requested by Defendant.

Moreover, the Court concludes that Defendant's reliance on *Silvio* is misplaced even with respect to Plaintiff's claim under Civil Code § 1793.2(d)(2). In *Silvio*, the consumer presented his car for repair only once and, when the problem persisted, demanded a repurchase. Based on this factual scenario, the Court of Appeal held that the consumer had not stated a claim under Civil Code § 1793.2(d), because that statute offers remedies where the car manufacturer is "unable to service or repair a new motor vehicle . . . to conform to the applicable express warranties after a reasonable number of attempts." (Civ. Code § 1793.2(d)(2).) Construing the statutory language referring to "a reasonable number of attempts," the Court noted that "attempts" is plural, thus requiring that more than one repair opportunity was necessary to state a claim. (*Silvio*, at pp. 1208-1209.) Contrary to Defendant's suggestion, the *Silvio* court did not rule that there must be multiple repair opportunities for the same vehicle problem. What is more, the Court agrees with Plaintiff that the question of whether the underlying defects confronted by Plaintiff were related to one another or stemmed from a single systemic failing is a factual question to be determined by the jury based on the entire repair record for Plaintiff's vehicle, their testimony about the nature of the defects they experienced and reported, expert testimony by both sides' designated experts, and other materials that might inform the jury's deliberations.

Furthermore, a consumer may rescind a purchase or seek other remedies for breach of the implied warranty without giving the manufacturer an opportunity to repair the defect. (*Mocek v. Alfa Leisure, Inc.* (2003) 114 Cal. App. 4th 402, 406.)

Breach of the implied warranty is one of the claims Plaintiff is prosecuting at trial.

MOTION IN LIMINE NO. 4 TO EXCLUDE EVIDENCE OF
CONCERNS OR COMPLAINTS PRESENTED AFTER THE EXPIRATION OF THE APPLICABLE WARRANTY
TERMS.

DENIED, without prejudice. Defendant

seeks a broad exclusion order that would bar admission of several categories of documents without submitting or even identifying any documents for the Court's consideration. No meaningful order can be issued based on such a motion. *Kelly v. New West Fed. Sav.* (1996) 49 Cal. App. 4th 659, 670.

Furthermore, there are circumstances where a non-warranty repair could tend to show that the vehicle did not conform to the express warranty. (*Donlen v. Ford*, supra, at 149.)

That said, the Court is mindful that Plaintiff here that repairs after the initial warranty expired were covered by a third-party warranty purchased by Plaintiff, and that admission of such evidence of repair could confuse the jury. Before mentioning such non-warranty repairs, Plaintiff shall make a proffer to the Court outside the presence of the jury as to the relevance of such evidence.

DEFENDANT'S MOTION IN LIMINE NO. 5 TO EXCLUDE
EVIDENCE AND TESTIMONY REGARDING DEFECTS NOT IDENTIFIED BY PLAINTIFF DURING
DISCOVERY.

GRANTED, with explanation. Defendant argues:

Therefore, Defendant served straightforward discovery demands upon Plaintiff seeking clarity as to the precise nature of the alleged defects. Plaintiff took the interesting position that the nature of the defects was both not relevant and privileged (see Plaintiff's Responses to Defendant's Special Interrogatories, Nos. 1-3, Exhibit "B" to the Miller Dec.). Rather than describe the alleged issues, Plaintiff simply referred Defendant to the repair orders produced in this matter. Plaintiff cannot have it both ways. Plaintiff cannot refuse to identify the alleged defects with the vehicle during discovery and then appear at trial with detailed descriptions of alleged defects. Plaintiff should be precluded at trial, therefore, from offering any testimony

or evidence concerning defects not previously disclosed during discovery. As Plaintiff decided to rely upon the descriptions of the alleged issues in the repair orders during discovery, Plaintiff should be precluded at trial from relying upon anything other than those repair records to identify the claimed issues with the vehicle.

(Motion, at 5.)

Defendant is entitled to rely on Plaintiff's discovery responses. Plaintiff referred Defendant to repair orders to identify those defects. Plaintiff cannot now point to defects in addition to those identified in the discovery responses. However, Plaintiff is not confined to the text of the repair orders to describe those defects. Plaintiff may introduce other evidence, such as Plaintiff's testimony, to further describe the defects described in the repair orders.